

26STCP02038 26STCP02038

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Case Number: 26STCP02038 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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CHRISTINE DE ANDA, et al.

Petitioner(s),

vs.

COUNTY

OF LOS ANGELES, et al.,

Respondent(s).

Case No.:

26STCP02038

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION

Petitioner Christine De Anda ("Petitioner") seeks a preliminary injunction restraining respondent County of Los Angeles, Department of Animal Care and Control ("Respondent") from euthanizing or destroying any of the approximately 303 animals seized from Petitioner on or about March 20, 2026 ("Seized Animals").

The preliminary injunction is granted.

I.

Background

Petitioner operates Rock N' Pawz Rescue ("Rescue"), a nonprofit animal rescue organization. (De Anda Decl., ¶ 2.) Petitioner contends the Rescue's animals are frequently in poor condition because the Rescue specializes in caring for animals which most shelters would deem unadoptable. (De Anda Decl., ¶ 3.) The Seized Animals include Rescue animals as well as Petitioner's pets. (De Anda Decl., ¶ 4.)

On March 20, 2026, Respondent executed a search warrant ("Warrant") and seized the Seized Animals ("Seizure"): 232 dogs, 65 cats, two goats, a goose, parrot, a pig, and a rabbit. (De Anda Decl., ¶¶ 13-17.)

On March 23, 2026, Respondent amputated the rear left leg of a dog identified as A5763585. (Yusin Decl., ¶¶ 5-6, Ex. C at 14-15.)

Petitioner filed her Verified Petition for Writ of Mandate and Complaint for Declaratory, Injunctive, and Other Relief ("Petition") on May 29, 2026. On July 6, 2026, Respondent demurred to the Petition.

On July 10, 2026, the Court heard and denied Petitioner's ex parte application for an order to advance hearing date and shorten time on motion to quash warrant. The same day, the Court called Petitioner's ex parte application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction and continued the hearing to that afternoon. Still that same day, the Court heard Petitioner's ex parte application for a TRO and OSC, and granted the application in part. The Court granted a TRO restraining Respondent only from euthanizing or destroying any of the seized animals. The Court further granted an OSC re: preliminary injunction

only for the same restraint. The Court ordered Respondent could apply for ex parte relief if it determined euthanasia or destruction of any specific Seized Animal was urgently required during the pendency of the TRO. To date, Respondent has made no requests for ex parte relief.

On July 13, 2026, Petitioner filed her supplemental supporting brief pursuant to the OSC. The same day, Petitioner filed a notice of lodging indicating she lodged a flash drive containing video recording. On July 23, 2026, Respondent filed its opposition to the OSC. The same day, Respondent objected to the contents of the flash drive lodged with the Court on the basis that Petitioner has not served Respondent with its contents.

On August 21, 2026, Department A19 at the Antelope Valley Courthouse is scheduled to hear Respondent's "Motion/Petition for Order re Handling of Seized Animals", in which Respondent requests relief from the restriction in the Warrant preventing Respondent from euthanizing or destroying the animals.

II.

Evidentiary Objections

Respondent objects to Exhibit E to Petitioner's supplemental supporting papers, video contained on a flash drive lodged with the Court, on the basis that Respondent has not been served a copy of the video. The objection is sustained. Separately, the contested Exhibit E is not necessary to resolution of the preliminary injunction.

III.

Discussion

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial (Code Civ. Proc. ["CCP"] §526(a)(1)), and (2) a balancing of the "irreparable harm" that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283; Davenport v. Blue Cross of California (1997) 52 Cal.App.4th 435, 446; Abrams v. St. John's Hospital (1994) 25

Cal.App.4th 628, 636.) Thus, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (Doe v. Wilson (1997) 57 Cal.App.4th 296, 304.)

The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See Scaringe v. J.C.C. Enterprises, Inc. (1988) 205 Cal.App.3d 1536; Grothe v. Cortlandt Corp. (1992) 11 Cal.App.4th 1313, 1316; Major v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (Voorhies v. Greene (1983) 139 Cal.App.3d 989, 995, quoting United Railroads v. Superior Court (1916) 172 Cal. 80, 87; 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.)

1.

Probability of Success

"The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (Butt v. State of California (1992) 4 Cal.4th 668, 678. However, "[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Ibid.)

Petitioner claims that Respondent has not complied with Penal Code[1]

section 597.1, which she contends governs the Seizure. In opposition, Respondent does not argue it complied with section 597.1, nor does Respondent explicitly contend section 597.1 does not apply. (See generally Opp., Supp. Opp.) Rather, Respondent argues that section 1536 applies, and under that section, the matter is not properly before this Court because section 1536 grants exclusive control of the issue to the magistrate who issued the Warrant or to the criminal court.

This matter is properly before this Court.

Section 597.1 provides for "a postseizure hearing to determine the validity of the seizure or impoundment, or both." (§ 597.1(f).) Respondent acknowledges a hearing under section 597.1 took place, and the hearing officer

issued a decision affirming the Seizure. (Opp. at 3; Supp. Opp. at 3.) Indeed, the postseizure hearing under section 597.1, subdivision (f), applies even when Respondent seizes animals pursuant to a search warrant if section 597.1 provides a basis for the warrant. (*Bakos v. Roach* (2025) 108 Cal.App.5th 390.) Here, the affiant's statement of probable cause expressly lists violation of section 597.1 as a basis for the warrant. (Pet. Ex. B.)

Respondent incorrectly conflates the magistrate's limited authority under Penal Code section 1536 with this Court's jurisdiction to review administrative determinations under section 597.1. Mandamus review over the post-seizure administrative hearing is appropriate. (See *Broden v. Marin Humane Society* (1999) 70 Cal.App.4th 1212, 1217-18.) So, while this Court may not have jurisdiction to intercede in any criminal action, it certainly has jurisdiction to review the administrative decision finding the Seizure valid and to make provisional injunctive orders in aid of its jurisdiction. Respondent cites no authority, and the Court is aware of none, holding that Penal Code section 1536 divests a civil court of jurisdiction to review a section 597.1 post-seizure administrative decision. [2]

Based on the foregoing, the matter is properly before the Court. As Respondent argues no other grounds against the merits of Petitioner's claim, the Court finds Petitioner has shown a probability of success.

2.

Balance of Harms

The Court must balance the irreparable harm that Petitioner is likely to sustain if the injunction is denied as compared to the harm that Respondent is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp., *supra*, 63 Cal.App.4th at 1402; *Pillsbury, Madison & Sutro v. Schectman*, *supra*, 55 Cal.App.4th at 1283.)

If the injunction is not granted, the Seized Animals may be subject to euthanasia without notice. Petitioner argues this is irreversible, uncompensable harm. In opposition, Respondent argues Petitioner has only shown speculative harm, and Petitioner has the burden of showing irreparable harm.

While Petitioner does bear the burden here, Respondent overstates that burden. As the Court of Appeal has discussed "irreparable harm"

“is somewhat of a misnomer.” (Mae M. v. Komrosky (2025) 111 Cal.App. 5th 198, 221 [“Komrosky”].) Properly, and as noted above, “the trial court ‘compares the interim harm the plaintiff is likely to sustain if the injunction is denied to the harm the defendant is likely to suffer if the preliminary injunction is issued.’ (Tulare Lake, supra, 92 Cal.App.5th at p. 396, 309 Cal.Rptr.3d 493.)” (Ibid.) Irreparable harm does not exclusively mean “injury beyond the possibility of repair,” but also covers “wrongs of a repeated and continuing character”. (Komrosky at 221-22, citing Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach (2014) 232 Cal.App.4th 1171, 1184.) An injunction is appropriate “[w]hen it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.” (CCP § 526(a)(3).)

The euthanasia of the Seized Animals would certainly tend to render judgment in favor of Petitioner ineffectual. And, while Petitioner has not shown any concrete plan to euthanize the Seized Animals, Respondent makes its intent clear in its petition to the criminal court:

“It is important to have this preclusion removed because some of the medical issues we are monitoring can change rapidly, and an animal will potentially need immediate euthanasia. That could occur [sic] in the middle of the night (as things like these usually happen) when there is nobody except the overnight RVT and whichever senior veterinarian is on call on the phone. At that point we will not have the ability to work on making middle of the night requests to the judge with just us. We want to be properly prepared so that we would not end up in that situation.” (Suppl. Stumreiter Decl., Ex. N, p. 32.)

Respondent actively seeks to clear a legal pathway to immediately euthanize any of the Seized Animals without notice to Petitioner or judicial review.[3]

Therefore, euthanasia of the Seized Animals is harm Petitioner is likely to suffer if the injunction is not granted.

Conversely, Respondent does not argue it will suffer any harm if the injunction is granted. (See generally, Opp.; Supp. Opp.)

Based on the foregoing, the court finds that the balance of

harms favors Petitioner.

3.

Bond

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist* (1991) 235 Cal.App.3d 1, 15.) The attorney fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.* at 15-16.) While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox*, (2012) 211 Cal.App.4th 1036, 1062.)

Petitioner requests a nominal bond of \$1, or an alternative amount not to exceed \$1,000. (Mem. at 10.) Respondent does not object to a nominal bond. The Court sets the bond at \$100.

IV.

Conclusion

Petitioner has shown a probability of success on the merits, and the balance of harms favors Petitioner.

Petitioner seeks additional injunctive orders regarding care standard compliance, access for counsel, advance notice of veterinary procedures, and advance notice of animal transport. Apart from the fact that these requests exceed the scope of the OSC, on the present record, Petitioner has not demonstrated a likelihood of prevailing on these additional issues or a sufficient showing of interim harm to justify mandatory or prohibitory relief beyond the narrow euthanasia restraint.

Accordingly, the preliminary injunction is GRANTED on narrow grounds as follows: pending the underlying writ hearing or further order of this Court, Respondents, and all persons acting in concert with them, are restrained and enjoined from euthanizing/destroying any of the Seized Animals.

Nevertheless, should Respondents determine that

euthanasia/destruction of any specific Seized Animal (or Animals) is urgently required during the pendency of the preliminary injunction, they may apply ex parte for such relief.

For clarity, the Court notes that this injunction does not alter or modify the search warrant, does not interfere with any criminal court's jurisdiction, and does not intrude upon the magistrate's authority under Penal Code section 1536. The injunction applies only to restrain Respondents' actions and simply preserves the subject matter of the mandamus proceeding (the Seized Animals) so that meaningful review of the post-seizure administrative determination under section 597.1 may proceed without being rendered hollow.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line

"SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the Penal Code unless otherwise stated.

[2]

While no party addressed it—and without deciding the issue—if there were a criminal case currently pending against Petitioner based on the underlying allegations in the petition, it is possible that Government Code section 945.3 would bar Petitioner's action in this Court. However, Respondent's opposition papers confirm that there is currently no pending criminal case against Petitioner.

[3]

Respondent also argues that “[t]he making of a motion is not an act that violates the law. Instead, it is the use of a legal procedure to appeal to a court. Petitioning the government is protected by the First Amendment.” (Supp. Opp. at 5.) This argument is unpersuasive. The potential harm at issue is not the outcome of that motion. The harm is, as described, the potential euthanasia of the Seized Animals. The magistrate in the criminal court will rule on that motion based on the standard applicable for a search warrant. This court evaluates its OSC re: preliminary injunction based on the mandamus action before it.